

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E

**DEFENDANT'S TARGETED SUPPLEMENT IN SUPPORT OF RULE
1.530 MOTION**

**(JUNE 3, 2025 ORDER; RULE 2.530 REMOTE/HYBRID PARTICIPATION;
NO WRITTEN OBJECTION; UNSWORN ARGUMENT ≠ EVIDENCE)**

Defendant, pro se, files this limited supplement to his timely motion under Fla. R. Civ. P. 1.530. It addresses the June 3, 2025 order denying continuance and denying remote appearance at pretrial/trial. The order recites facts that establish good cause for remote participation (indigency, documented medical constraints, international distance/7 time zones, and a multi-year history of Zoom proceedings), yet denies relief without (a) a timely written objection under Rule 2.530, and (b) case-specific prejudice findings as the rule requires.

I. Governing standards

1. Rule 2.530 (Communication Technology) applies to all proceedings.

With limited exceptions not relevant here, communication technology “may be used for all proceedings before a court official,” either on motion or in the court’s discretion, with reasonable notice and access instructions. Rule 2.530(b) also creates two operative sub-frameworks:

- **Non-evidentiary ≤ 30 minutes:** the court must grant a motion to use communication technology unless it finds good cause to deny. Rule 2.530(b)(1).
- **Testimony:** the court may allow remote testimony on a showing of good cause, considering enumerated factors (resources; geographic location; cost/inconvenience of physical presence; time sensitivity; ability to handle documents; need to observe demeanor; etc.). Rule 2.530(b)(2) (also sets oath/identity safeguards).
- **Written objection & waiver:** any objection must be filed in writing within the time the rule specifies or the court sets; failure

to timely file a written objection waives the objection. Rule 2.530(b).

2. Continuances (Rule 1.460(e)).

Courts should use remote options to avoid continuances where feasible; if a continuance is denied, the court should adopt less-restrictive alternatives (e.g., hybrid participation) consistent with due process.

3. Unsworn argument is not evidence.

Factual findings (including any “prejudice” from remote use) cannot rest on unsworn statements of counsel. *Leon Shaffer Golnick Advertising, Inc. v. Cedar*, 423 So. 2d 1015, 1017 (Fla. 4th DCA 1982); *Faircloth v. Bliss*, 917 So. 2d 1005, 1006–07 (Fla. 4th DCA 2006); *Passport Leasing Corp. v. Zimmerman*, 945 So. 2d 660, 662 (Fla. 4th DCA 2007).

4. Contempt safeguard.

No coercive contempt may issue absent an express finding of present ability to comply with the act ordered. *Bowen v. Bowen*, 471 So. 2d 1274, 1277–78 (Fla. 1985).

II. Application

A. No written objection was filed; any oral objection was waived and is not evidence.

Plaintiffs filed no written objection within Rule 2.530's objection period. A hearing-room "we object" does not satisfy the rule; failure to file a timely written objection is a waiver. And even if spoken, attorney argument is not evidence and cannot establish the rule's "case-specific prejudice."

B. The June 3 order is internally inconsistent under Rule 2.530.

The order acknowledges the very facts that constitute good cause (sworn indigency, medical constraints, international distance/7 time zones, and a record of Zoom practice) but denies remote/hybrid without:

- (i) identifying any timely written objection;
- (ii) making factor-by-factor findings under Rule 2.530(b)(1)–(2);
or
- (iii) adopting less-restrictive alternatives (Defendant remote; witnesses/counsel in person; exhibit protocols; time-zone scheduling).

That misapplies Rule 2.530.

C. Denial of continuance without remote alternatives caused prejudice.

Where international travel is financially and medically untenable, requiring in-person only—after years of remote practice—predetermines the outcome by logistics, not merits. Rule 1.460(e) instructs courts to use remote appearances to avoid that prejudice.

D. Medical photographs (authentication/decency).

If the Court remains concerned about the cropped medical photographs, Defendant can file a sworn verification authenticating the images (cropped for decency) and stands ready to provide unredacted versions in camera/under seal. That evidence goes to good cause without requiring international travel.

III. Requested relief (process-focused; narrow)

WHEREFORE, pursuant to Rule 1.530, Defendant respectfully requests that the Court:

1. Recognize waiver of any objection not timely made in writing under Rule 2.530(b) and authorize Defendant's remote/hybrid participation at all further hearings and at any re-set bench trial, with reasonable safeguards (on-camera oath and identity, verified location, pre-marked exhibits and real-time screen-sharing, scheduling mindful of

time zones);

OR, in the alternative:

2. Set a short rehearing limited to remote/hybrid participation and enter written, factor-by-factor findings under Rule 2.530(b) (good cause versus any case-specific prejudice). Require Plaintiffs, within 7 days, to file a 1-page “Specific Prejudice Statement” identifying concrete prejudice (if any). Failure to file = no prejudice;
3. Apply Rule 1.460(e) and adopt the least-restrictive alternative (remote/hybrid) rather than conditioning adjudication on international travel from an indigent, medically-limited litigant;
4. Clarify that any enforcement going forward requires an express finding of present ability to comply before any coercive contempt may issue (*Bowen*);
5. Set a brief Zoom status to (i) finalize remote/hybrid logistics and (ii) sequence paper-decidable matters (e.g., interest schedule; Count 11 specificity/possession; Count 9 scope/present ability) before any merits session.

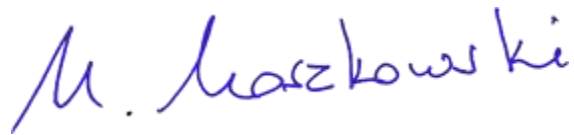
Respectfully submitted this 22nd day of September, 2025

Marc Moszkowski, Pro Se

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Le Verdos

83300 Châteaudouble, France

A handwritten signature in blue ink that reads "M. Moszkowski". The signature is written in a cursive, flowing style.

CERTIFICATE OF SERVICE

I hereby certify that, on this 22nd day of September, 2025, a copy of the foregoing has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

A handwritten signature in blue ink that reads "M. Moszkowski". The signature is written in a cursive, flowing style.